

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Bakerly, LLC

Complainant,

v.

Docket No. 22-17

Seafrigo USA, Inc.

Respondent.

**COMPLAINANT’S UNCONTESTED MOTION FOR
ENLARGEMENT OF TIME TO FILE BRIEF**

Pursuant to Rules 502.215, 502.102, 502.69, and 502.71 of the Commission’s Rules of Practice and Procedure (46 C.F.R. §§ 502.215, 502.102, 502.69 and 502.71) Complainant Bakerly, LLC moves the Federal Maritime Commission to enlarge the time for Bakerly to file its opening brief. Bakerly has good cause for an enlargement based on a late and significant discovery production by Respondent Seafrigo USA, Inc.

Discovery closed on April 3, 2023. But on April 14, 2023, Seafrigo produced a spreadsheet providing updated information on 1,037 invoices (eleven days after the close of discovery). *See* Production Email, attached as **Exhibit A**. Then, on April 18, 2023 (fifteen days after the close of discovery), Seafrigo produced 1,216 PDFs without any citation in the spreadsheet as to which of the 1,216 documents relates to which of the 1,037 lines in the spreadsheet. *See* Production Email, attached as **Exhibit B**.

Rule 502.102 permits the extension of time to file documents “upon a showing of good cause” and be filed at least seven days before the filing deadline. Bakerly has good cause

because of the quantity of documents and severe delay in this production. Additionally, this motion is filed fourteen days before the filing deadline of the Opening Brief.

The Scheduling Order provided Bakerly with thirty days after the close of discovery to file its opening brief. With 1,216 documents and a spreadsheet outlining 1,307 subject transactions produced fifteen and eleven days late, respectively, that leaves Bakerly with half the time initially allotted to draft the brief. To proceed with the May 3 deadline would prejudice Bakerly and the late discovery production constitutes good cause for enlargement of time to file the brief.

Counsel for Bakerly conferred with counsel for Seafrigo on April 19, 2023, and counsel for Seafrigo indicated they would not oppose this motion. See Email Exchange, attached as **Exhibit C**.

For the reasons outlined above, namely, that the late discovery production is good cause to enlarge the deadline because the late discovery production causes prejudice to Bakerly, Bakerly requests an extension of its opening brief to May 17, 2023 in order to promote a just and speedy determination of this action.

April 19, 2023

Respectfully Submitted:



Carlos Rodriguez
Julia B. Banegas
Husch Blackwell LLP
1801 Pennsylvania Ave., N.W. Suite 1000
Washington D.C. 20006
Phone no. 202-378-2365

E-mail:

carlos.rodriguez@huschblackwell.com

julia.banegas@huschblackwell.com

Counsel for Complainant, Bakerly LLC

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 19th day of April 2023, a true and current copy of the foregoing Motion was filed via electronic mail with the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

Brendan Collins
Principal | GKG Law, P.C.
1055 Thomas Jefferson Street NW | Suite 500
Washington, DC 20007
Tel: 202.342.6793 | Fax: 202.342.5207
bcollins@gkglaw.com | www.gkglaw.com



Julia Banegas
Counsel for Complainant, Bakerly LLC